
Journal

1974 PLD 90

Court

SUPREME COURT OF AZAD JAMMU & KASHMIR

Date

1974-06-11

Appeal No.

CRIMINAL MISCELLANEOUS NO. 22 OF 1974

Judge

KHAWAJA MUHAMMAD YUSUF SARAF

Parties

MST. FATIMAH BIBI PETITIONER VERSUS GOVERNMENT OF AZAD J & K (RESPONDENT)

Lawyers

MUHAMMAD SHARIF TARIQ FOR PETITIONER. MUHAMMAD KHURSHID, A.-G/FOR THE STATE.ABDUL MAJID MALIK FOR THE COMPLAINANT.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898)-SS 497 498 AND 499 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 458

Judgment

The petitioner, a grown-up woman, is in judicial lock-up in a case under sections 497 and 498, Penal Code. The only common ground between the parties is that she was married to the complainant, Mohammad Sharif; while she claims to have been divorced in writing, the complainant denies having executed the document. As the surety did not command confidence of the complainant, he moved the Sessions Judge who passed the following order:-

“The offences are not of a serious nature nor are punishable with death or transportation for life; the accused is a woman; it is, therefore, proper that she should remain on bail. Therefore, if she furnishes bail for attendance, in the sum of Rs. 5,000 and personal bond in the same amount to the satisfaction of any Magistrate 1st Class, Mirpur or Bhimber, she should be released from custody. The surety should be a Mahram of the accused. The accused is not prepared to go with her mother or real brothers nor is her real uncle present. The surety is neither her Mahram nor relative and it would not, therefore, be proper to allow her liberty by being allowed to remain on his bail. The accused says that her brothers and mother and in-laws as well as relatives from her paternal side want to kill her. Therefore, the bail granted to the accused is cancelled and if she submits fresh bail on the lines suggested above, she should be released or else she should be kept in the judicial lock-up.”

In Azad Kashmir, under the Criminal Law Amendment Act, 1948 (vide Cabinet Resolution No. 583), offences under sections 493 _ to 498, Penal Code, were made cognizable and the wife was made punishable as an abettor under sections 497, 498. In 1951, sections 497 and 498 were made non-bailable.

Ultimately the fate of the whole case hangs on answer to the question as to whether the petitioner was or was not divorced. The alleged Talaqnama is on the file and bears the signatures of one Muhammad Sharif 'Baqalm-e-Khud' in Urdu. The complainant denies having either divorced her or executed any Talaqnama but it is intriguing to find that the only documents on the file signed by him, the Vakalatnama and an affidavit have been signed in English while the documents themselves are in Urdu. Has he deliberately attempted to avoid signatures in Urdu? Has he done so to avoid a comparison with the signatures on the Talaqnama? He did not appear before me personally although a large crowd of noisy relatives and supporters did hawkishly follow the poor wretched girl into the Court. Are these facts innocent incidents or do they portray a guilty mind? While it is premature to express any definite opinion, it would be unreal to claim that they have not left an impression.

While it is true that in non-bailable offences an accused cannot claim bail as of right, it is equally true that the policy of law almost consistently followed is to grant bail in all cases except those punishable with death. The learned Sessions Judge has rightly pointed out that the offences are not of a serious nature, that the accused being a woman, it was only proper that she should remain on bail. The question, however, is as to whether the grant of bail can be made subject to conditions and whether such a condition, as has been imposed by the Sessions Judge, is legally impossible.

The question as to whether a Court can impose conditions while granting bail has been the subject of several decisions. In AIR 1931 All.

356, which alongwith AIR 1931 All. 504 arose out of what is popularly known as the Meerut conspiracy case, a D. B. consisting of Mukerji and Boys JJ. admitted the petitioner Mr. H. L. Hutchinson to bail but at the same time imposed conditions. The order said:-

"We direct that the applicant Mr. H. L. Hutchinson be admitted to bail to the satisfaction of the District Magistrate who will, of course, see that the bail is adequate but not excessive.

Before the applicants are admitted to bail, they must give an undertaking in writing to the District Magistrate that they will not take part in any public demonstration or agitation of any description and that they will not make any public speeches or contribute anything to the public press during the time they are out on bail "

In AIR 1931 All. 504, a Special Bench consisting of Sulaiman Ag. C. J., Young and King JJ. heard a similar application of other co-accused.

The learned C. J. who delivered the judgment, ordered:-

"We are of opinion that Desai, Thengdi, Alve, Jhabwala, Kadam and Saigol shall be released on bail on condition of their executing each (excepting Thengdi) a personal bond of Rs. 2,000 with two sureties, each surety to be in Rs. 2,000 and to be to the satisfaction of the District Magistrate, Meerut. While on bail, these accused shall not take part in any public demonstration or agitation of any kind and shall not make any public speeches or contribute to the public press.

In the case of Thengdi, the personal bond shall be for Rs. 4,000. The amount of the sureties and the other conditions to be the same as in the case of the others."

In AIR 1940 Pat. 375, an accused was released on bail but the sureties were made to undertake that he will remain in Monghyr during the trial so that he does not take part in Satyagrah at Lagar nor incite others to join or carry on the movement. The sureties signed the order-sheet in token of acceptance. The accused defied the restriction and the bond was forfeited. The matter came up before the High Court but the question as to whether such a condition could or could not be imposed was neither raised nor decided. The sureties challenged the order of forfeiture on the ground that the order-sheet not being a part of the bond, they were not bound by it. The Court rejected the contention and held that it was a contract between the Court and the sureties.

In AIR 1942 Mad. 740, the accused were charged under sections 147, 148, 447 etc. All the offences were bailable but when they applied for bail, the Magistrate ordered their release on the condition that they should not enter upon the disputed land till the disposal of the case. Justice Horwill deleted the condition but while doing so, held:-

"The question that arises in this petition is whether this condition is one permissible by law. With regard to non-bailable offences, I can see no objection to imposing conditions of this kind; for the Magistrate has an option to grant bail or to refuse bail and he has also the power under section 497 Criminal P. C., of causing persons so released to be arrested and committed to custody, which subsection he would apply in case the condition was not fulfilled. But all the offences with which the petitioners were charged are bailable offences, with regard to which a Magistrate has no discretion. He must release the accused on bail provided that he is willing to execute bonds for his appearance."

In AIR 1945 Lah. 215 (Kitnat Rai Sanwal Singh Khushalani), it was held that a Magistrate releasing a person on bail can direct him to appear before the police during investigations.

In AIR 1949 Mad. 77, the learned Magistrate while admitting the accused to bail in two bailable offences, made it subject to the condition that they would not enter upon the land in dispute until

the dispute was decided by a Court. On a reference by the District Magistrate, Visagapatam, the High Court passed the following order:-

“In bailable offences, it is well-settled that there is no question of discretion in granting bail as the words of the section are imperative. The only choice for the Court is as between taking a simple recognisance of the principal offender or demanding security with surety. Ordinarily the word “bail” applies to the second kind of security according to the practice and procedure of the Courts. The Criminal Court has no discretion in bailable offences while granting bail under section 496, Criminal Procedure Code, to impose any condition except the demanding of security with sureties.”

The inference, it seems, is that in case of non-bailable offences, the Court can impose conditions.

In A I R 1950 All. 525 also, though the offences were bailable, the trial Court while granting bail, required the accused to give an undertaking that they would not take part in any public demonstration or do anything regarding fresh abetment of an offence under section 228, Penal Code.

The learned Sessions Judge cancelled the conditions and the State went in revision to the High Court. The learned Judge while holding that no conditions were contemplated in bailable cases, however, gave the opinion that such conditions could be imposed in non-bailable cases. Said the learned Judge:-

“Conditions were imposed in orders granting bail in certain cases of non-bailable offences. It does not follow from those cases that conditions can also be imposed in orders granting bail in bailable cases. Under section 497, Criminal Procedure Code, which provides for bail in non-bailable cases, it is discretionary for the Court to grant bail. In certain circumstances mentioned in subsection (1) bail is not to be granted and in certain circumstances mentioned in subsection (2) bail has to be granted by the Court. When discretion is given to the Court to refuse bail or to grant it, that discretion itself implies a discretion to grant bail subject to certain conditions. When there is no discretion to refuse bail, the question of imposing conditions does not arise.”

In A I R 1956 M B (F B), the question before the Court was as to whether the High Court could, while admitting an accused to bail, make it subject to the condition that the trial Court can cancel it if it was satisfied that he was tampering with evidence. It may be pointed out that when an accused is enlarged on bail, it is inherent in the order that he will not abuse the confidence thus reposed in him, say, by absconding or tampering with evidence or repeating the offence etc. As under section 498 bail granted by the Sessions Judge or the High Court cannot be cancelled by the trial Court (and that is why in a number of cases, such as A I R 1932 All. 534, A I R 1945 Mad. 250 and A I R 1948 All. 366, the same procedure was approved), the High Court expressly provided for cancellation but

VJEF the satisfaction and timing to the trial Court. Delivering the judgment, *Chief Justice Kaul said:-

“The High Court by its order granting the bail has also exercised its discretion to cancel the bail in future on the ground of tampering with prosecution witnesses, leaving it to the Magistrate to determine the fact of tampering with the prosecution witnesses necessary for the High Court's direction with regard to the cancellation of the bail to become operative.

The High Court has by such an order as in this case while granting bail to the accused, also

taken the decision to cancel the bail on the ground of tampering with the prosecution witnesses and the High Court has itself laid down the condition with regard to the operation of the order granting bail and its cancellation in future and everything which is to follow upon the condition being fulfilled.”

(1957) 2 Andh. W R 383 is not available here but does find a mention in -A I R 1965 Andh. Pra. 444. The accused were charged with bailable offences but the Magistrate while granting bail imposed a condition that they should appear before the Commissioner of Police, Madras, whenever required to do so. Chandra Reddy, J. cancelled the condition and held:-

“i shall next see whether such a condition is permissible under section 496, Cr. P. C. That section envisages an accused person being released on bail when the charge against him is in regard to a bailable offence. The words used are “such person shall be released on bail” thereby denoting that it is mandatory on the Magistrate to admit him in that behalf. He has no discretion to impose any conditions, the only discretion that is left in him being only as to the amount of the bond or whether the bail could be on his bond or with sureties. Any condition subject to which the bail should operate infringes the provisions of section 496. The bail under section 496, Criminal Procedure Code, should be unconditional one. This view of mine is in conformity with the current of authorities of several of the High Courts. (See In re\ District Magistrate, Visakhapatnam (Referring Officer) (1948) 1 Mad. 77), Radha v. State, 1955 Mad. W N 609 and Rex v. Genda Singh AIR 1950 All. 525).

The considerations that pertain to an order under section 497, Criminal Procedure Code, do not apply to the granting of bail under section 496, Criminal Procedure Code. In the former case, it is the discretion of a Court to release the accused on bail or not and while releasing the accused on bail it could impose certain conditions. But the accused is entitled to claim bail under section 496. In the premises, the accused cannot be compelled to appear before the Commissioner of Police at Madras, as it is a condition which is repugnant to the terms of section 496. Consequently, the clause in that behalf cannot be restored as it was validly deleted.”

In 1965 Andh. Pra. 444, the Sessions Judge Guddapah while granting bail to the accused imposed the condition that they should confine their movements to the municipal limits of the Guddapah town during the pendency of the trial and report themselves to the Police Station twice a day. The imposition of the condition was challenged in the High Court. The Court held that the conditions imposed were valid. The learned Judge has tried to distinguish AIR 1939 Cal. 714 on the ground that the learned Judge had taken care to mention that on violation of the undertaking given by the accused the Court might either cancel the bail bond or hold the accused for contempt of Court. With regard to A I R 1949 Cal.

582,, the learned Judge held that it had been set aside as the condition imposed was too onerous.

Let me now take up the cases wherein a contrary view appears to have been taken. In I L R 23 Cal. 495 which was an application for transfer wherein one of the grounds taken was that a condition had been imposed upon the accused to report himself to the authorities at Purulia, the D.

R, commented as follows:-

“The same remarks, we think, apply to the statements contained in paragraphs 34 and 35. The Magistrate notwithstanding that he released the accused on bail during the trial of the second case, still required him to report himself to the authorities in Purulia and when the accused

applied for leave to go to Ghaibassu and to Calcutta, his prayer was granted only so far as his going to Ghaibassu was concerned, the other part of his prayer being refused. The Magistrate says he did this because he had reasons to think that the accused might abscond. The order is not warranted by law, and was calculated to create apprehension in the mind of the accused that the Magistrate was biased against him."

In *Emperor v. Chintaram* (1) the decision turned round the scope of section 499, Criminal Procedure Code; the question was whether a bond that did not specify the Court before whom the accused was to appear, could be forfeited? Vivian Bose J. ruled in the negative. The learned Judge held:

"It was argued by the learned Government Advocate that the under" taking was to produce him "till decision". If that was so, it was beyond the power of the Court to insert such a condition in the bond for section 499 is exhaustive of the conditions which can be imposed on sureties.

The matter is not like an ordinary contract in which the parties are at liberty to choose their own terms. It is a special proceeding governed by special laws and must conform strictly to them."

In *Gyani Mehr Singh v. Emperor* the petitioner was being tried under section 124-A, Penal Code. An undertaking was incorporated both in the personal bond as well as the surety bond that he will not make any speeches-until the disposal of the cases. He violated the condition and the bonds were consequently forfeited. On appeal, the High Court held that such a condition could not be incorporated in the bonds as it was not contemplated by law and that the only condition contemplated by a bail bond under section 499 is a condition for appearance in Court.

In AIR 1949 Cal. 582, which was a case of theft, an accused was released on bail by the Sessions Judge on the condition that during the pendency of the case, he will not move out of Midnapore; he was a resident of another town. It was held by the High Court that imposition of such a condition was tantamount to refusing bail and the condition was therefore set aside. Harries, C. J. held that the Sessions Judge could have rather refused bail.

In AIR 1954 Sau. 109, an accused absented himself on a certain date in a bailable offence. The Magistrate admitted him to fresh bail but;

(1) AIR 1936 Nag. 243 (2) AIR 1939 Cal. 714

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with the condition that he shall appear every day in the Court whether the case was fixed for hearing or not. This condition was deleted by the High Court.

In PLD 1955 Dacca 84, while reducing the amount of bail from Rs. 5000 to Rs. 2000, one of the petitioners was ordered to live within the limits of the Rangpur municipality. The Division Bench accepted the revision and held:-

"In our opinion, on the language of section 499 read with Form XLII, Sessions Judges and Magistrates have no power whatever to impose any condition at all when they grant bail. We are in agreement with the opinion of Edgley, J. in the case of *Gyani Mehr Singh v. Emperor* supported by Vivian Bose, J. in the case of *Chintaram v. Emperor*, that this section of the Code does not warrant the imposition of any condition and there is no other section in the Code which has any application in the matter. Just as the Sessions Judge or Magistrate, in our judgment, has no power to impose any condition, so, in our opinion, on the language of the section he is not

competent to accept any conditions which the accused person may like to suggest himself. We do not think that the decision of Munir, J. in the case of Kimat Rai Sanwal Singh Khushalani which we have quoted in extenso, in any way really conflicts with this view. Under section 499 of the Code, the Court can grant bail on condition that the person shall attend at the time and place mentioned in the bail and that would cover an attendance before the Police such as is contemplated in the judgment of Mr. Justice Munir. But we certainly do not agree that it covers such conditions as we have seen imposed in criminal cases that an accused shall attend a local Police Station twice daily, in the morning and in the evening, to give Haiira before the Police Officer.”

Quoting a passage from Mr. Monnier’s Code of Criminal Procedure, the learned Judges have proceeded to say:

“We have also in considering this question of bail referred to the monumental work on the Code of Criminal Procedure by E. H. Monnier whose thorough and comprehensive knowledge of the criminal law of the country was recognised on all sides. Mr. Monnier commenting on section 499 of the Code of Criminal Procedure stated:

‘Section 499 enables the Court to ensure appearance at the hearing but not to abridge the liberty of the bailed person by requiring his attendance otherwise daily or on fixed days or by imposing conditions rendering procurement of bail difficult, e.g., as to class and number of sureties, or by onerous terms e.g., that no attempt will be made by the accused to realise rents forcibly; that he shall not proceed beyond a certain place’.”

Perhaps the latest authority on the subject is P L D 1963 S C 478. A case under section 124-A, Penal Code, was instituted against the petitioners in a subordinate Court. During arguments in connection with bail, one of the senior Counsel for the petitioners agreed to give an undertaking that while on bail the petitioners will not deliver any speeches of the kind reflected in the resolution on the basis of which prosecution had been launched and* consequently it was incorporated in the bail bonds. The petitioners challenged the order first before the same Court but on failure, went to appeal to the Supreme Court. The Supreme Court divided the question into two parts, namely, whether the Court could impose conditions in its order of bail and secondly whether such a condition could be incorporated in the bail bond. Their Lordships did not give any opinion on the first question but answered The second one in the negative. Their Lordships held:

“Whether a bail order can be subjected to a condition of this kind at all, without its incorporation in a bail bond, is a larger question which does not call for consideration in the circumstances of the instant case. We are here concerned with the limited question whether such a condition can be incorporated in a bond required to be executed by sureties when a person is granted bail. There is nothing in the provisions of sections 496, 497 and 498 of the Code, which can lend support to the contention of the learned Advocate-General that a condition of this kind can form an integral part of a surety bond or bail bond. Does section 561-A of the Code then enlarge the powers of the High Court in this regard? The Privy Council judgment in

Lola Jairam Das’s case was distinguished by the Supreme Court of India on the ground that their Lordships were not called upon in that case to consider the question about the inherent power of the High Courts to cancel bail under section 561-A. The observation is correct, so far as it goes, but with respect, it must be pointed out that effect was not given to the pronouncement of the Privy Council that the powers to grant bail were exhausted by Chapter XXXIX read with section 426 of the Criminal Procedure Code and that section 561-A did not add to such powers. The question in that case was not whether in a proper case the Court had jurisdiction to cancel

the bail already granted to a person accused of a non-bailable offence. On the contrary, the point raised was whether the unfettered right of a person accused of a bailable offence to be enlarged on bail under section 496 of the Code, could be encroached upon in the supposed exercise of inherent powers. Such inherent powers could only be regarded as auxiliary or ancillary powers to make effective orders that could be passed under some provision of the Code, in the interest of justice. Whatever the position may be with regard to the power of a Court in requiring an undertaking from an accused person before granting bail to desist from the repetition of the offence with which he is charged, as a condition precedent to the grant of bail, it seems fairly clear on the language employed by section 499, Criminal Procedure Code that such a condition cannot be incorporated in a bail or surety bond itself. We therefore allow the appeal and quash the condition in question which was directed to be inserted in the bond."

A careful examination of these latter cases, which seemingly take the view that no conditions could be imposed, will show that except for the Dacca ruling, they are clearly distinguishable and have not laid down that no conditions at all could be imposed by the Court. AIR 1939 Cal.

714 and PLD 1963 S C 478 are authorities only for the proposition that no conditions outside the ambit of section 499 could be incorporated in bail bonds. The Supreme Court has taken special care to put on record that it was not returning any opinion on the legality or otherwise of the imposition of conditions in the order for bail. Thus the two cases are not at all in conflict with the relevant trend of authority beginning with AIR 1931 All. 356. Even in A I R 1949 Cal. 582, the D. B. held that if the petitioner had been a resident of Midnapore, the town to which his movements had been

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restricted, "no objection could be taken to this condition". The remarks in I L R 23 Cal. 495 are in the nature of obiter dicta because the question was not directly involved. AIR 1936 Nag. 243 too is an authority merely for the proposition that no conditions beyond the scope of section 499, Criminal Procedure Code can be imposed on a surety. AIR 1954 Sau. 109 has no application as it was a bailable offence.

The only case that now remains to be distinguished is P L D 1955 Dacca 84. It is, no doubt, an authority for the proposition that no conditions can be imposed while admitting a person to bail. Their Lordships have relied upon AIR 1939 Cal. 714 and AIR 1936 Nag. 243.

It is apparent that AIR 1941 All. 356, A I R 1931 All. 504, A I R 1942 Mad. 740, and A I R 1949 Mad. 77 were not brought to the notice of their Lordships. They included such weighty authorities as Sir Shah Mohammad Sulaiman C. J. Had these cases been in the notice of their Lordships, one cannot say what their ultimate opinion may have been. The second reason is that AIR 1939 Cal. 714 is clearly distinguishable on the ground that in this case the conditions were incorporated in the bonds which offends against section 499, Criminal Procedure Code. Similarly A I R 1936 Nag. 243 is distinguishable on the ground that the question involved in that case was whether a bond that did not specify the Court of appearance, could be forfeited? It was not a case of the imposition of conditions but the effect of an incomplete bond. Again what the learned Judge held, while discussing the scope of section 499, was that "it was exhaustive of the conditions which can be imposed on sureties, and not that no conditions could be imposed by the Court on the accused, while admitting him to bail.

In A I R 1931 All. 356 and A I R 1950 All. 525 (S B), written undertakings, independent of the bonds, were required from the accused while in all other cases cited above, the Court merely made the continuation of bail granted by it dependent upon the observance of conditions spelled

out in the order of bail. It is important to point out that although the Special Bench imposed conditions wholly identical with those imposed earlier on a co-accused in the same case, their Lordships made a departure from the procedure adopted by the D. B. in that they did not require the accused to give a written undertaking but thought it sufficient to leave it merely as a part of the bail order. By implication it means that the Bench (judgment is written by Sulaiman, C. J.) was either doubtful about the legality of requiring an accused to give a written undertaking over and above the bond under section 499 or thought it to be unnecessary.

Whether an accused is required to give an undertaking or not so long as the condition is not incorporated in the bond, the result that may ensue in both the situations is identical, namely, the loss of liberty by the accused and his trek back to jail. Therefore, it is really immaterial whether the accused is required to give a written undertaking on the lines of the conditions imposed by the Court or the same are merely left as part of the order of bail. Such conditions as the Court may impose, are independent of the bonds under section 499 which are expressly confined to ensure the appearance of the accused.

It seems, therefore, that there is a consensus of authority in favour of the proposition that the Courts have the power, in non-bailable cases, to impose conditions upon an accused person but that no such conditions, as the Court*

may impose, can be incorporated in the bonds executed by the accused and the sureties under section 499, Criminal Procedure Code. [

Bail may even be refused on the ground that the accused may abscond, especially when he is a passport-holder, or that he is likely to tamper with the prosecution witnesses or that he was so reckless that if released on bail, he may commit similar or other offences. Bail was actually refused in A. I. R. 19_8 Bom. 244 and AIR 1951 M. P. 31 on the last mentioned ground.

The former, conducted by Quaid-e-Azam, was under section 307 while the latter was under section 302, Penal Code. The principle also finds recognition in AIR 1929 All. 614, AIR 1931 All. 356 and 504.

Since a person who stands accused of a non-bailable offence parades himself as being dangerous to organised society and by thus reducing his own social credit, creates a doubt that he may escape justice or having run society amok, may bite the same or any other member of the community, he forfeits his personal liberty till the decision of the case. Legally and theoretically speaking, he cannot claim bail as of right though in actual practice, due to the fast developing concept of the rule of law, it is no longer the grant of bail but refusal to do so that has, except in cases punishable with death, to be reasonably justified.

Nonetheless, as in non-bailable cases, release from custody cannot be claimed as of right but is in essence an indulgence in furtherance of liberty, there seems to be no reason why this liberty may not, in proper cases, be properly curtailed. If the Court can properly refuse bail to a person holding a passport on the ground that he may jump off bail and abscond, why can't it admit him to bail on the condition of surrendering the passport?

As the conditions that the Court may impose, do not form part of the bond and need not even require of the accused to give any written undertaking, it does not come in clash with section 499, Criminal Procedure Code. There is, by itself, nothing in sections 497 and 498 against the imposition of B conditions. Apart from the fact that discretionary orders, as orders under the two sections are, presuppose the power to impose conditions, the Criminal Procedure Code is not exhaustive and unless a certain procedural course is expressly or impliedly prohibited, the Court

is entitled to have recourse to it. In (1888) 11 All. 267, the principal question for determination before the F B was as to when a decree was passed by a Sub Judge and confirmed or modified in appeal, what Court had jurisdiction to entertain an application for amendment of the decree. Mr. Justice Mahmood held:-

Now, I take it as an undoubted principle of law that everything is to be taken as permissible unless there is some prohibition against it. The principle is of such a comprehensive nature that it applies equally to substantive and adjective law and has been recognised as one of the fundamental principles of interpreting statutes. It is, indeed, true that in interpreting consolidatory statutes, such as the preamble of our Civil Procedure Code represents that enactment to be, we must consult the statute itself in order to find authority or prohibition."

In AIR 1923 Cal. 724, the Sessions Judge, Rajshahi discharged the jury in the midst of trial and ordered the case to be tried *de novo*. The accused went in revision to the High Court and the Division Bench held that although the situation was not covered by relevant provisions of the Criminal Procedure Code, yet the Code not being exhaustive, the Sessions Judge was entitled to pass the order in question. The Bench held:-

"The contention submitted to us is that a case such as this is not provided for by the Code of Criminal Procedure and that sections 282 and 283

are exhaustive as regards discharging a jury during the continuance of the trial; there are other sections referring to the discharge of a jury such as section 305, but those are sections which only apply at a later stage. The sections however do not profess to deal with the circumstances in which a jury may be discharged, rather it is the other way and in the circumstances to which they refer they state what course may be pursued.....and the power being one that is not

covered by any section of the Code of Criminal Procedure I think it suffices to say that the matter is one for the Judge's discretion. So far as it deals with any point specifically, the Code of Criminal Procedure must be deemed to be exhaustive and the law must be ascertained by reference to its provisions, but where a case arises and it is not within those for which the Code specifically provides, it would not be reasonable to say that the Court had not the power to make such order as the ends of justice require."

In AIR 1934 Cal. 428, the appellants were tried by the Assistant Sessions Judge, Khulna with the help of a jury. At the first trial, the jurors unanimously returned a verdict of not guilty but the Public Procedure informed the Court that after the jury had retired for deliberations, one of them had gone out for an hour to say his Jumma prayers. The learned Sessions Judge, on inquiry, found the contention true, discharged the jury and brought in a fresh jury and started the trial *de novo*. This time the jurors returned a verdict of guilty and consequently the accused were convicted. On appeal, they took the plea that their second trial was illegal and *ultra vires* as the Judge had no power under the Criminal Procedure Code to discharge the jury after a verdict had been recorded. The learned Judges rejected the contention and also held that in the absence of any provision to the contrary in the Indian statute relating to procedure, a rule recognised under the English law, which is not a mere rule of practice and procedure but a rule embodying a principle of justice, may safely be applied. It was held:-

. . The argument proceeds on the basis that the procedure followed by the Judge of discharging a jury after the verdict of the jury had been recorded was not prescribed by the Criminal Procedure Code, and that section 282 of the Code was exhaustive, as regards the discharge of a jury by a Judge. It appears to us that where the question of misconduct on the part of the jury or other similar sufficient cause arises, the Sessions Judge has inherent power to discharge a jury

and empanel another. This power is not covered by any provision of the Criminal Procedure Code, the matter being one for the Judge's discretion. It is to be noticed that so far as it deals with any point specifically, the Criminal Procedure Code must be deemed to be exhaustive, and the law must be ascertained by reference to its provision, but where a case arises which demands interference and it is not within those for which the Code specifically provides, it would not be reasonable to say that the Court had not the power to make such order as the ends of justice required."

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As indicated already, in England the Judge has the power to discharge the jury, ? if necessity arises, before or after the verdict, and in the absence of any ""provision to the contrary in the Indian statute relating to procedure, a rule recognised under the English law, which is not a mere rule of practice and procedure, but a rule embodying a principle of justice, may safely be applied."

1'a8- 390, in three cases of theft of timber at Wardha,

several lists of additional witnesses were filed by the prosecution in the midst of the trial and some were filed even after the charges had been framed. The learned Magistrate summoned these witnesses but the accused went in revision to the High Court where it was contended that such lists could not be filed under any relevant section of the Criminal Procedure Code.

Discussing the applicability of section 540, the learned Judge held:-

"Thus the Court had the power to act as it did, and no illegality is proved. It is said that the Criminal Procedure Code is an exhaustive one. That is so only with regard to matters specifically dealt with by it. Absence of any provision on a particular matter does not mean that there is no such power, and the Court may act on the principle that every procedure should be understood as permissible till it is shown to be prohibited by law."

In A I R 1925 Cal. 501, which has been treated by the reporters as a case of very great importance, a Britisher was tried under section 409 read with 120(h) of the Penal Code and sentenced. The co-accused was subsequently tried separately and acquitted and the question rose before the High Court as to whether under section 423 of the Criminal Procedure Code the appellant was entitled to acquittal as the charge of conspiracy had failed in the other case. Although the powers exercised by the Court of Criminal Appeal in England are much larger than the powers conferred on Courts in the sub-continent under section 423, Criminal Procedure Code and that although there is no provision in the Code justifying interference with a conviction on the ground of repugnancy in the record, yet the Court held:-

But if we were satisfied that if a rule was recognized under the English law which was not a mere rule of practice and procedure but as embodying a principle of natural or substantial justice, and there was nothing in the Code in force in this country mitigating against its application here the powers conferred by section 423, Criminal Procedure Code would be large enough to invoke its application in this country as well, and I would have not hesitated to invoke the aid of that principle."

In State v. Sohan Lai (1) the question was whether, after having framed the charges, the Court could split up these charges resulting in the acquittal of the accused in relation to some transactions. It was held that the Code was not exhaustive; that the view that no procedure can be adopted, however reasonable and proper it may be, unless there is an express provision sanctioning it in the Criminal Procedure Code, was hardly correct and that the correct principle

was that in matters of procedure, a particular procedure should be considered to be permitted if it is not prohibited.

In England, the Courts are empowered under the Criminal Justice Act 1967 to impose conditions at the time of granting bail and the conditions may be such as appear to the Court to result not only in his appearance for trial but also to be necessary in the interests of justice and for prevention of crime. Section 21 of the Act, as quoted in Archbold's Criminal Pleadings, Evidence and Practice (37th edition) at page 74, is reproduced below:-

“(1) The conditions on which any person is admitted to bail may include conditions appearing to the Court to be likely to result in his (1) A I R 1960 Raj. 44

appearance at the time and place required or to be necessary in the interests of justice or for the prevention of crime.

(2) A Court while admitting, or directing the admission of, any person to bail imposes a condition under the foregoing subsection shall not require him to find sureties in respect of that condition.”

Even before the passing of the Act and thus expressly investing the Courts with the power to impose conditions, the British Courts had been using this power by requiring the surrender of a passport whenever the same was considered necessary (Criminal Justice and the Treatment of Offenders by J. D. McLean and J. C. Wood, page 62).

The question that now remains to be considered is as to whether the Court can impose the condition that only a member of a particular class of people can be acceptable as a surety as has been demanded in this case? It seems the Court has imposed this condition so as to prevent the repetition of the alleged offence of adultery. It may be a socially laudible object and may meet with the general approval, or perhaps acclaim, of large sections of the male population but I seriously doubt whether it is legally possible to impose such a condition. The ability to impose conditions not being an arbitrary power, does not invest the Court with the authority of imposing any condition under the skies; the conditions must be reasonable. How can it be termed reasonable when, in effect, it frustrates the very order of bail passed by the Court? To me it seems that by requiring a woman like the petitioner, all whose relatives within the prohibited degree are quite obviously total partisans of the complainant, to select a surety only from amongst them, would not only be interpreted by her and those in sympathy with her as a manipulation to refuse bail but also tends to identify the court with the partisan relatives of the complainant party. It is not enough that the Court should act impartially or be content with the thought of having so acted; the Courts are not dealing with lifeless objects like machines; they deal with human-beings which makes it necessary that they should be human enough to realise that it is equally important that their orders, in any particular situation, should also seem to be impartial. In England, law forbids requiring an accused to find sureties in respect of conditions imposed on bail because it may otherwise be impossible or at least difficult for him to benefit from the bail order. That is why Mr. E. H.

Monnier, as quoted above, has said that imposing a condition as to class of sureties would render procurement of bail difficult and would abridge the liberty of the bailed person. If a Court thinks that there is a danger of the repetition of the offence, the proper course to adopt is not to allow bail with one hand and to take it back simultaneously with the other, but to refuse it altogether.

It is true, as held in 2 Hawk. P. C., c. 15, section 3, 138 as quoted in Halsbury's Laws of England, Volume 9, page 323 (1909), that:

“The effect of granting bail is not to set the accused free, but to release him from the custody of law and to intrust him to the custody of his sureties who are bound to produce him to answer on his trial at a specified time and place.”

But all the same it is not like the custody of a minor by a guardian and no law, to my knowledge, requires an accused to take up his or her residence under the roof of the surety. The surety's responsibility is limited to the extent of ensuring the appearance of the accused at the trial on pain of indemnifying the State to the extent of the amount specified in the bond.

Again, in the present day world of over-population, large cities and towns spread over miles together, the roaring hotel-business and the swift means of communication which are at the same time within the reach of any ordinary citizen, how can the Court ensure by such an order that the woman would necessarily be prevented from pursuing an immoral course? Besides, under what law can we necessarily presume that a woman who is released on the bail of a non-relative or a relative outside the circle of Mahrams, must necessarily pursue an immoral course and conversely what is the guarantee that she will necessarily NOT do so if released on the bail of a Mahram? It is not without reason that the law presumes everybody to be righteous.

Besides, what is moral in a particular situation may often be a debatable proposition. Suppose in the instant case it is ultimately found that the woman had actually been divorced by the complainant. What would happen to morality if she were compelled to get out of jail on the bail of Mahrams who are bound to compel her to live with the man, they call her husband, or subject herself to his sexual desires because all of them do seem to be under his influence. It would practically amount to making the woman available for rape until the disposal of the case which is a much more heinous offence than the one under section 497, at least under the existing law of the land, because while the former carries a maximum sentence of life imprisonment, the latter is punishable with a maximum sentence of five years.

Reference must also be made to P L D 1972 Lah. 809. In this case the girl sought to be freed was admittedly married and the petitioner who seemed to have been carrying on an intrigue with her, claimed that her movements had been restricted by her husband. As the girl had left the Dar-ul-Aman, Lahore, before the announcement of the judgment, out of her own volition, the decision is in the nature of an opinion but, of course, entitled to great weight. After discussing the law on the point, Mr. Justice Zullah, in a scholarly judgment, said:-

“The sum total of the above discussion is that if a wife shows disloyalty, unfaithfulness and bad conduct including indecency and lewdness and tries to go out of the house of her husband to pursue such a course particularly qua known paramour, the Islamic Law confers a right on the husband to restrain her from doing so and this includes a further right to confine her and to punish her. Applying these principles to this case and in the light of the above discussion, I am of the firm opinion that in this case when Naseer (the paramour), in the background of the detenu's elopement with him and her having been recovered and lodged in the house of her husband, obtained the order under section 491, Criminal Procedure Code, from this Court for her recovery from her husband's house; she was neither illegally nor improperly being detained there even if her movements were restrained by the husband.”

Not being a case under the Penal Law, the question of bail was not before the Court. It was an attempt to misuse section 491 for facilitating the commission of a marital offence with, in the words of Mr. Nazir Mahmood J. “the blessings of the High Court”. ‘Liberty’ was refused on the ground that a lawfully married woman who wanted to leave her husband's roof in order to facilitate an illicit intrigue with her paramour, enjoyed no such liberty and the husband could

lawfully prevent her from doing so. A perusal of the judgment will show that the Court was naturally also influenced by the fact that resort is being made to section 491 in a way which constitutes an abuse of the process of the Court and tends to bring the administration of justice into disrepute. It cannot be denied that the section was and is still being made use of as a convenient smoke-screen for elopements; the most unfortunate aspect of the process, however, is that on account of its understandable solicitude for liberty and the duty cast by law to uphold the same, the High Court was being unscrupulously used as a spring-board for such women to jump into the arms of their paramours. This, incidently, is a past-freedom development.

It can't be lost sight of that we live in a society where, as a rule, women do not enjoy the freedom of choosing their husbands and it happens not very infrequently that they are foisted on them. It is, no doubt, true that arranged marriages with the prior consent of the girl are most desirable and have proved their worth by experience, but that is an altogether different matter. With the growth of education and an awareness of their rights, girls are increasingly declining to follow the dictates of their parents or guardians in the matter and, as a consequence, go away with men of their choice. In the poor and lower middle class, the pattern is to get married after getting the usual "permission" from Courts. There are parents and guardians who reconcile themselves to the situation but let us not forget that there also are parents and guardians who cannot reconcile themselves to it, with the result that false cases under sections 497 and 498, Penal Code, are registered and the man who was the cause of the elopement or some other relative is brought forth and paraded as the so-called husband of the poor girl. Similarly, in the case of widows or women divorced by their husbands, if the woman refuses to toe the line of her relatives in the matter of choosing the second husband and is strong-willed enough to embark upon a course of her own choice, these relatives enact the same drama. How would it be morally justified to compel such women to choose as sureties these very men who are their sworn enemies and who are determined to put her on a road that leads to sin and crime? That a daughter and mother should have fallen apart is unfortunate and, as a parent, one naturally feels sympathetically drawn towards the old woman, but merely because the two have fallen apart, does not necessarily prove that morality is on the side of the mother or that it is not on the side of the daughter. It is obvious that the truth may not emerge out immediately and may take its own hazardous course to reveal itself. So the safest course for a Court to adopt is to release the woman on a surety of her own choice and leave the law to take its own course so that if there is really a repetition of the offence, nothing prevents either the Court from cancelling the bail or the complainant from initiating a second case.

Under these circumstances, I hold that although the learned Sessions Judge had the power to impose conditions while admitting the petitioner to bail, the condition imposed by him in this case could not be imposed and the same is hereby deleted from the order under revision. I, therefore, accept this application and order that the petitioner be released on bail of any person of her choice in the sum of Rs. 5000 with personal bond in the same amount to the satisfaction of Sub-Judge, Magistrate 1st Class, Bhimber, or A.D.M., Mirpur.

A_ j. Application accepted,

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